

offenses out of which the cause of action may have arisen. It is a covert attempt to transfer another large portion of jurisdiction from the State tribunals, to which it of right belongs, to those of the United States. It is neither authorized nor expedient, and is not calculated to bring peace, or order, or domestic content and prosperity to the disturbed society of the South. The contrary will certainly be its effect.”²³

Mr. Voorhees of Indiana, also speaking in opposition, gave it the same construction: ²⁴

“And now for a few moments let us inspect the provisions of this bill, inspired as it is by the waning and decaying fortunes of the party in power, and called for, as I have shown, by no public necessity whatever. The first and second sections are designed to transfer all criminal jurisdiction from the courts of the States to the courts of the United States. This is to be done upon the assumption that the courts of the southern States fail and refuse to do their duty in the punishment of offenders against the law.”

Senator Thurman of Ohio spoke in the same vein about the section we are now considering: ²⁵

“It authorizes any person who is deprived of any right, privilege, or immunity secured to him by the

²³ *Id.*, App., p. 50. Mr. Golladay of Tennessee expressed the same concern:

“Is the great State of New York invaded every time a murder is committed within her bounds? Was the great State of Pennsylvania invaded when rioters in the city of Philadelphia burned a public building? Was the great State of Massachusetts invaded when Webster, one of her first scholars, within the walls of Harvard murdered Parkman, or later, when evil-disposed persons violated her laws in Lowell? Did they require the Army and Navy and martial law? And, sir, because a midnight murderer is sometimes found in the South it should not be regarded as an invasion.” *Id.*, App. 160.

²⁴ *Id.*, App. 179.

²⁵ *Id.*, App. 216.